

		As possession of the property is no longer at issue, the Court finds the Defendant is the prevailing party in this matter. The Court orders the Court Clerk to seal the record as the Defendant is the prevailing party in this matter. The Defendant is ordered to provide notice of the Court's ruling.
12	30-2026-01575211 Main Street Management, Inc vs. Rios	<u>Motion to Dismiss</u> The Court has read and considered the Defendant's Motion to Dismiss (ROA 19) A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory period. The Defendant filed this Motion on June 17, 2026 and chose to calendar it for August 28, 2026, more than 2 months after filing it and well outside the statutory time period for unlawful detainers. Furthermore, Defendant does not allege that the Complaint is not facially sufficient for an unlawful detainer complaint. Defendant's sole contention for the basis to dismiss the complaint is that Defendant has experienced economic hardship and would like to remain in the property. The Court DENIES the Motion to Dismiss. As such, the Court orders the Defendant to file an Answer within 3 calendar days. Plaintiff is ordered to provide notice of the Court's ruling. <u>Discovery Motions</u> The Court has read and considered the Plaintiff's Motion to Compel Production of Documents, Set One, and Request for Monetary Sanctions Against Javier Rios (ROA 39), Motion to Compel Responses to Interrogatories and Request for Monetary Sanctions Against Javier Rios (ROA 32), and Motion for Order Deeming Matters Admitted and Request for Monetary Sanctions Against Javier Rios (ROA 26). The Plaintiff's Motion to Compel Responses to Interrogatories is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to the Request for Interrogatories, within 5 days of service of notice hereto. IT IS ORDERED that the Plaintiff's Motion for Order Deeming Matters Admitted be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the Requests for Admissions, propounded by Plaintiff and served on Defendant on July 2, 2026, be deemed admitted.

		The Plaintiff's Motion to Compel Production of Documents is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to Plaintiff's Request for Production of Documents, within 5 days of service of notice hereto. The Court orders Defendant, Javier Rios, to pay sanctions in the amount of \$555 to Plaintiff forthwith. This sum shall be made payable to "Law Offices of Sam Chandra, APC" within 5 business days and shall be delivered to 710 S. Myrtle Ave. #600, Monrovia, CA 91016. Plaintiff is ordered to provide notice of the Court's ruling.
13	30-2026-01578705 VAOC Newport Plaza, LP vs. Tate	Defendant's Counsel filed a request to withdraw the Motion for Attorney's Fees (ROA 35 & 41). The Court vacates the hearing dates of August 28, 2026 and September 11, 2026, regarding the respective Motion for Attorney's Fees.
14	30-2026-01590619 Bays Apartments Newport LLC vs. Almataev	The Court has read and considered the Defendant, Eldiir Almataev's Motion to Strike Complaint (ROA 8) and the Complaint (ROA 2). The Defendant entitled the Motion a "Motion to Strike" but in the body of the document refers to it as a demurrer, and the proof of service for the Motion says on 8/21/2026 "Notice of Demurrer and Demurrer to Complaint" was served on the Plaintiff. The Court DENIES the Defendant's Motion to Strike the request for attorney's fees as an improper damages request. The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to serve notice of the Court's ruling.
15	30-2026-01582151 12575 9th Street, L P. vs. Flores	Motion to Dismiss is off calendar. Motion was ruled on 8/5/2026 by the Court. Court trial is set for 9/8/2026 at 8:30 AM.
16	30-2026-01587925 The Irvine Company LLC vs. Odooli	The Court has read and considered the Defendant's Demurrer (ROA 19), the Complaint (ROA 2), and the Proofs of Service of Summons (ROA 8, 10, & 12). The Court OVERRULES the Demurrer. The Defendants are ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
17	30-2026-01589113 South Spinnaker, LLC vs. Carter	The Court has read and considered the Defendant's Demurrer to Complaint (ROA 10) and the Complaint (ROA 2). The Court SUSTAINS the Demurrer with leave to amend on the grounds that the Plaintiff or its agent signs no verification. Plaintiff's counsel signs page 4 of the UD-100 form, but the signature line for Plaintiff is blank; and page 9 of